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Case Number: 25STCV28868 Hearing Date: July 8, 2026 Dept: 509

Aaron Bryant v. Archdiocese of Los Angeles Education & Welfare Corporation, et al.

(1) DEMURRER TO FIRST AMENDED COMPLAINT

(2) MOTION TO STRIKE

MOVING PARTY(S): Defendants St. Anthony's High School Foundation; The Roman Catholic Archbishop of Los Angeles; Archdiocese of Los Angeles Education & Welfare Corporation; and Christine Tucker

RESPONDING PARTY(S): Plaintiff Aaron Bryant

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Aaron Bryant (Plaintiff) bring this action against his former employer St. Anthony's High School Foundation; The Roman Catholic Archbishop of Los Angeles; Archdiocese of Los Angeles Education & Welfare Corporation; and Christine Tucker. Plaintiff alleges Defendants subjected him to harassment and retaliation. Plaintiff asserts causes of action for: (1) Sex/Gender Harassment and Hostile Work Environment — Violation of FEHA (Gov. Code, § 12940(j)); (2) Disability Discrimination — Violation of FEHA (Gov. Code, § 12940(a)); (3) Failure to Accommodate (Gov. Code, § 12940(m)); (4) Failure to Engage in the Interactive Process (Gov. Code, § 12940(n)); (5) Failure to Prevent Harassment (Gov. Code, § 12940(k)); (6) Retaliation and Wrongful Termination — Violation of FEHA (Gov. Code, § 12940(h)); (7) Wrongful Termination in Violation of Public Policy; (8) Retaliation — Violation of Labor Code § 1102.5; and (9) Unreimbursed Business Expenses — Violation of Labor Code § 2802.

The Roman Catholic Archbishop of Los Angeles; Archdiocese of Los Angeles Education & Welfare Corporation; and Christine Tucker (Defendants) now demur to causes of action 1-8 in the first amended complaint (FAC) and moves to strike requests for punitive damages within. Defendant St. Anthony's High School Foundation (the Foundation) demurs to causes of action of the FAC. Plaintiff opposed.

TENTATIVE RULING:

Defendant St. Anthony's High School Foundation's demurrer is SUSTAINED IN ITS ENTIRETY

Defendants' Demurrer to the First, Second, Third, Fourth, Fifth, and Sixth, causes of action is SUSTAINED.

Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Defendants' Demurrer to the Seventh and Eighth causes of action is OVERRULED.

Defendants' Motion to Strike is GRANTED. Leave to Amend is DENIED, without prejudice.

Moving parties are ordered to give notice, unless waived.

DISCUSSION:

Demurrer to First Amended Complaint

I. Meet and Confer

The Declaration of attorney Paul W. Park reflects the meet and confer requirements were satisfied.

II. Request For Judicial Notice

Defendants request this Court take judicial notice of various business records with the California Secretary of State. Pursuant to Evidence Code, section 452(c), the Court takes judicial notice of Exhibits A-I.

III. Objections to Evidence

Plaintiff submits objections to evidence.

This Court is unaware of any legal authority which requires a court to rule on evidentiary objections on a motion, except as to a motion for summary motion/adjudication (Code Civ. Pro. § 437c, subd. (q)) or a special motion to strike (Code Civ. Pro. § 425.16, subd. (b)(2)); see also, *Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 947-949.)

As such, this Court respectfully declines to rule on these objections. This Court is aware of the rules of evidence, and to how much weight, if any, should be given to any of the proposed evidence.

IV. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (*Ibid.*) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.

(Hahn, at p. 747.) “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

V. Analysis

Defendants demur to all causes of action in the FAC.

A. Causes of Action One-Six (FEHA Causes of Action)

Defendants demur to the first through sixth causes of action in the FAC on grounds that the causes of action fail because Defendants are religious corporations exempt from the provisions of FEHA. However, in opposition, Plaintiff argues that the Court cannot consider Defendants' request for judicial notice, the FEHA causes of action may proceed against the Foundation and the supervisor, and that waivers of such protections have been sufficiently alleged.

1. The Entity Defendants are Religious Corporations

“‘Employer’ [under FEHA] includes any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly, the state or any political or civil subdivision of the state, and cities, except as follows: ‘Employer’ does not include a religious association or corporation not organized for private profit.” (Gov. Code, § 12926, subd. (d).)

Defendants judicially notice their Articles of Incorporation to demonstrate that all entity defendants are incorporated as non-profit religious entities. (RJN Exh. A-I.)

In opposition, Plaintiff contends that the Court cannot consider Defendant's articles of incorporation because “[t]he FAC alleges the Foundation is a nonprofit public benefit corporation, affiliated with the Catholic Church, that operates St. Anthony High School as its sole or primary activity. (FAC ¶¶ 11, 24–27.) Those allegations place the Foundation squarely within section 12926.2(f), not outside FEHA. Whether the Foundation is in fact a public benefit corporation (as opposed to a religious corporation), and whether it operated the school, are disputed factual questions—but on the allegations as pleaded, FEHA applies.” (Opp. at p. 5:4-9.) “Second, the joint-employer, integrated-enterprise, and agency allegations independently keep the institutional Defendants in the case. The FAC alleges that the Foundation, Parish, and ADLA Corp. jointly employed Plaintiff and operated as a single integrated enterprise, sharing management and labor-relations control.” (Id. at p. 5:10-13.) However, it does not appear from the opposition that Plaintiff disputes the fact that Defendants are non-profit religious corporations. Instead, Plaintiff's argument is one of procedure, namely that Defendants cannot demonstrate they are a non-profit religious corporation via judicial notice. However, “[t]he fact that there may be disputed facts outside the matters noticed does not preclude a court from taking judicial notice of documents containing undisputed facts.” (Friends of Shingle Springs Interchange, Inc. v. County of El Dorado (2011) 200 Cal.App.4th 1470, 1484.) Because the fact that Defendants are incorporated as a non-profit religious corporation appears undisputed, the Court treats this fact as such.

Therefore, Defendants have demonstrated a complete defense to Plaintiff's causes of action under FEHA pursuant to the religious-entity exemption under Government Code, section 12926.2(d).

2. The FEHA Causes of Action Cannot Proceed Against Foundation and Christine Tucker Individually

In opposition, Plaintiff argues “[w]hether the Foundation operated the school and employed or controlled Plaintiff during 2022-2025 is a quintessential factual question. A Certificate of Dissolution establishes neither non operation nor non-liability. A dissolved corporation continues to exist and may be sued. (Corp. Code, § 6520; Penasquitos, Inc. v. Superior Court (1991)

53 Cal.3d 1180, 1190.) The FAC alleges the Foundation operated the school as its primary activity (FAC ¶¶ 11, 25–27). That allegation must be accepted as true.” (Opp at p. 4:3-9.)

However, the Foundation was dissolved before Plaintiff’s employment. (FAC ¶10; RJN, Exh. F-I.) “Although an injured party whose claim arises after dissolution is generally precluded from pursuing a dissolved corporation’s assets in the hands of its former shareholders, there is no legal barrier to a suit against a dissolved corporation itself for injury or damage that is caused by the corporation’s predissolution activities but occurs or is discovered after the dissolution.” (Penasquitos, Inc. v. Superior Court (1991) 53 Cal.3d 1180, 1194, emphasis added.) Because Plaintiff is alleged to have suffered the injury after the dissolution of the Foundation, the Foundation cannot be held liable for an injury arising after dissolution.

Accordingly, the Foundation’s demurrer to the FAC is SUSTAINED IN ITS ENTIRETY.

Additionally, Plaintiff seeks to continue its action against supervisor Christine Tucker (Tucker), personally under FEHA. The question presented, however, is whether FEHA actions may proceed against employees of exempt entities. Neither Plaintiff nor Defendants provide any case law to address this issue. In turning to the statute, Government Code, section 12940 (j)(3) states: “[a]n employee of an entity subject to this subdivision is personally liable for any harassment prohibited by this section that is perpetrated by the employee, regardless of whether the employer or covered entity knows or should have known of the conduct and fails to take immediate and appropriate corrective action.” However, Government Code, section 12940 (j)(1) begins “[f]or an employer, labor organization, employment agency, apprenticeship training program or any training program leading to employment, or any other person...” (emphasis added.) However, as discussed above, Tucker is an employee of the entity defendants that fall outside of the definition of employer under FEHA. As the employer is not subject to this section, the employee, by the plain language of the statute, is not subject to this section as well. Indeed, allowing a harassment claim against a supervisor would appear to circumvent the statutory exemption and frustrate the intent of the legislature. Therefore, the FEHA causes of action brought against Tucker individually fails as a matter of law.

Therefore, the FEHA causes of action are improperly pled against all Defendants in this action.

3. Waiver is Insufficiently Alleged

Lastly, Plaintiff argues “Plaintiff’s waiver and estoppel allegations present factual questions.” (Opp. at p. 5:19.)

In the FAC, Plaintiff alleges:

To the extent any Defendant contends it is exempt from FEHA as a religious entity, Plaintiff alleges that each such Defendant has waived, and is equitably estopped from asserting, any such exemption. Defendants maintained and distributed workplace policies promising a work environment free from discrimination, harassment, and retaliation consistent with state and federal law; required or provided anti-harassment training; posted workplace notices identifying employee rights under FEHA; and presented Plaintiff with a Separation Agreement and Release expressly referencing discrimination and harassment claims based on protected characteristics as claims being released. Plaintiff reasonably relied on these representations in accepting and continuing employment and in believing that Defendants were subject to and bound by the same employment laws as other employers.

(FAC ¶31.)

However, in *Mathews v. Happy Valley Conference Center, Inc.*, the court stated “[w]aiver is ‘the voluntary relinquishment of a known right, which may be effective as a matter of law without any demonstration that the other party was caused by the waiver to expose [itself] to any harm.’” (*Mathews v. Happy Valley Conference Center, Inc.* (2019) 43 Cal.App.5th 236, 257 (*Mathews*).) The *Mathews* court held, however, that a handbook that merely states a religious entity prohibits harassment, discrimination, and retaliation is not enough to constitute a knowing and voluntary waiver of the religious entity exemption. (*Id.* at p. 258.) Likewise, a handbook that simply refers to being bound by the “applicable laws” providing equal employment

opportunities also fails to constitute a knowing and voluntary waiver of the religious exemption. (Ibid.) “The handbook makes no promise that defendants will be bound by FEHA.” (Ibid.)

Here, Plaintiff’s allegations are materially similar. There are no allegations of a voluntary relinquishment of a known right, but rather simply an internal policy of compliance with FEHA. These allegations are insufficient to support that Defendants waived their exemption.

Therefore, all Defendants have demonstrated a complete defense to Plaintiff’s causes of action under FEHA pursuant to the religious-entity exemption under Government Code, section 12926.2(d).

Accordingly, Defendants’ demurer to the first through sixth causes of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

B. Seventh Cause of Action (Wrongful Termination in Violation of Public Policy)

The seventh cause of action for wrongful termination in violation of public policy is not necessarily rooted in FEHA. It is a common law action. (See Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 898.) However, in the FAC, Plaintiff alleges:

Plaintiff’s termination violated the public policy against workplace retaliation for reporting harassment and discrimination, embodied in Government Code section 12940.

Plaintiff’s termination violated the public policy against disability discrimination and retaliation for taking protected medical leave, embodied in Government Code section 12940.

Plaintiff’s termination also violated the public policy against whistleblower retaliation embodied in Labor Code section 1102.5. Plaintiff’s internal complaints about Tucker’s conduct were disclosures of conduct that Plaintiff reasonably believed violated state law.

(FAC. ¶¶104-106.)

Here, “exemption from FEHA liability does not necessarily mean that [defendant] is without tort liability for terminating [plaintiff] in violation of public policy.” (Silo v. CHW Medical Foundation (2002) 27 Cal.4th 1097, 1104.) This cause of action alleges public policies outside of FEHA which Defendants violated by their decision to terminate Plaintiff. As a result, Plaintiff has sufficiently alleged a cause of action for wrongful termination in violation of public policy.

Accordingly, Defendants’ demurer to the seventh cause of action is OVERRULED.

C. Eighth Cause of Action (Retaliation — Violation of Labor Code § 1102.5)

Defendants allege the eighth cause of action for retaliation under Labor Code section 1102.5 fails because the FAC does not allege facts sufficient to establish either protected activity or causation.

To establish a prima facie case of retaliation under Labor Code, section 1102.5, a plaintiff must show (1) he engaged in a protected activity, (2) he was subject to an adverse employment action, and (3) there is a causal link between the two. (See, e.g., *Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1384.) With respect to the second element, the current version of Labor Code section 1102.5, subdivision (c), prohibits retaliation by “[a]n employer, or any person acting on behalf of the employer.” Section 1102.5 prohibits retaliatory employment action against a whistleblower. Specifically, an employer is prohibited from retaliating against an employee for disclosing information when “the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation.” (Lab. Code, § 1102.5, subd. (b).)

In the FAC, Plaintiff alleges he, “made protected disclosures to Jaramillo and Gasper concerning conduct he reasonably believed violated Government Code section 12940, including Tucker’s discriminatory and retaliatory conduct and the falsification of his evaluation.” (FAC ¶110.) “Plaintiff’s protected disclosures were a contributing factor in Defendants’ decision to terminate his employment on May 9, 2025.” (FAC ¶111.)

Here, these allegations are sufficient to allege a cause of action. Plaintiff alleges he was engaged in protected activity by disclosing what he believed to be discrimination and harassment by Tucker to two individuals which was then a contributing factor in his termination. This is sufficient at the pleading stage. Defendants attempt to create additional requirements the Court finds unpersuasive. For example, Defendants argues that “[b]ecause FEHA does not apply to Defendants, Plaintiff cannot plausibly allege that he reasonably believed Defendants were violating FEHA.” (Mot. at p. 20:2-3.) As with all additional requirements Defendant seeks to impose on this cause of action, Defendants cite no authority. As the Labor Code does not impose these restrictions, the Court declines to create such exceptions to the Labor Code.

Accordingly, Defendants’ demurrer to the eighth cause of action is **OVERRULED**.

D. Ninth Cause of Action (Unreimbursed Business Expenses — Violation of Labor Code § 2802)

Defendants argue “Plaintiff’s ninth cause of action for unreimbursed business expenses fails as against the Foundation because the FAC does not allege facts establishing that the Foundation was Plaintiff’s employer or had any involvement in the events giving rise to the claim.” (Mot. at p. 20:24-26.)

As discussed above, the Foundation was dissolved before the allegations in this action occurred and are not liable for such actions.

Accordingly, Foundation’s demurrer to the ninth cause of action is **SUSTAINED**.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Motion to Strike

I. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro § 436.)

II. Analysis

Defendants move to strike the prayer for punitive damages from portions of the complaint because Plaintiff failed to comply with Code of Civil Procedure, section 425.14.

Section 425.14 states:

No claim for punitive or exemplary damages against a religious corporation or religious corporation sole shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive or exemplary damages to be filed. The court may allow the filing of an amended pleading claiming punitive or exemplary damages on a motion by the party seeking the amended pleading and upon a finding, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established evidence which substantiates that plaintiff will meet the clear and convincing standard of proof under Section 3294 of the Civil Code.

(Code Civ. Proc., § 425.14)

As discussed above, Defendants are a non-profit religious corporation. As a result, Plaintiff was required to comply with the procedures outlined in Section 425.14 before claiming punitive damages.

Accordingly, Defendant's motion to strike punitive damages is GRANTED.

Plaintiff requests leave to amend; however, Plaintiff has not complied with the procedural requirements of Section 425.14. "The court may allow the filing of an amended pleading claiming punitive or exemplary damages on a motion by the party seeking the amended pleading and upon a finding, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established evidence which substantiates that plaintiff will meet the clear and convincing standard of proof." (Code Civ. Proc., § 425.14) As Plaintiff has not produced any evidence or affidavits supporting his claim for punitive damages, leave to amend is DENIED, without prejudice.

IT IS SO ORDERED.

Dated: July 8, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.